

**4-952. Petition to expunge arrest records and public records; upon release without conviction.**

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO

COUNTY OF Sierra

Seventh JUDICIAL DISTRICT COURT

In re Maria-Alejandra O'Shaughnessy-Whitfield, No.  
  
Petitioner.

**PETITION TO EXPUNGE ARREST RECORDS AND PUBLIC RECORDS UNDER  
NMSA 1978, SECTION 29-3A-4 [~~NMSA 1978~~]  
(Upon Release without Conviction)**

Petitioner, [ ] unrepresented by counsel/[ ] represented by counsel (*select one*), under NMSA 1978,  
Section 29-3A-4 [~~NMSA 1978~~], respectfully moves the Court to expunge the arrest records and  
public records related to the case and charge(s) below.

1. Information about Petitioner:

Date of Birth: 1961-12-31

Current Mailing Address: 1188 Upper Notch Crossing Rd Apt 14B

City: Truth or Consequences State: NM Zip Code: 87901

Home Phone #: \_\_\_\_\_ Work Phone #: \_\_\_\_\_ Cell #: \_\_\_\_\_

Other names or aliases by which Petitioner has been known (*include prior names, nicknames,  
or aliases, especially if your arrest records may reflect a different name*):

2. [ ] Petitioner has no pending expungement cases in the Seventh Judicial District.  
[ ] Petitioner has the following pending expungement case or cases in the Seventh Judicial  
District (*provide expungement case numbers for any expungement cases that may be currently  
pending before the Seventh Judicial District Court*):

3. [ ] Petitioner has never applied for expungement and been denied.

[ ] Petitioner has applied for expungement and been denied in the following expungement  
cases (*provide the expungement case numbers*): \_\_\_\_\_

4. The following case(s) and record(s) are the subject of Petitioner's Petition to Expunge  
(Include additional pages, if necessary):

District Court case number(s): \_\_\_\_\_

Metropolitan/Magistrate/Municipal Court case number(s): \_\_\_\_\_

Law Enforcement Agency case number(s): \_\_\_\_\_

Arrest number(s): \_\_\_\_\_

5. The following appellate court cases(s) are related to Petitioner's Petition to Expunge:

Court of Appeals case number(s): \_\_\_\_\_

Supreme Court case number(s): \_\_\_\_\_

[5.] 6. Petitioner was released without conviction for the following charges: (Complete for each  
charge sought to be expunged. Include additional pages if necessary.)

(1) Date of arrest: \_\_\_\_\_

Name of offense and statute/ordinance number: \_\_\_\_\_

Final disposition of offense: (check one) ☐ acquittal or finding of not guilty ☐ nolle

prosequi ☐ no bill ☐ referral to pre-prosecution diversion program ☐ Order of Conditional

Discharge under Section 31-20-13 (1994) NMSA 1978 ☐ other dismissal/discharge

(explain): \_\_\_\_\_

Degree of offense, if known (e.g., misdemeanor, petty misdemeanor, etc.): \_\_\_\_\_

Date of final disposition: \_\_\_\_\_

☐ Check if additional pages attached.

[6.] 7. ☐ Petitioner has no cases related to the charges sought to be expunged.

☐ The following cases are related to the charges sought to be expunged: (Include case names  
and numbers for any cases that were joined either with a co-defendant or joined as the result  
of a plea.)

[7.] 8. ☐ It has been one (1) year or more since the date of the final disposition of the charge(s)  
Petitioner seeks to expunge.

[8.] 9. ☐ There is no other charge or proceeding pending against Petitioner.

[9.] 10. Petitioner asks this Court for an Order to Expunge arrest records and public records in  
the custody of the following agencies:

☐ District Court in the Seventh Judicial District;

- ☐ \_\_\_\_\_ County Sheriff's Department;  
☐ District Attorney for the \_\_\_\_\_ Judicial District;  
☐ New Mexico Department of Public Safety  
☐ Law Enforcement Agency (*name of agency that arrested Petitioner*); \_\_\_\_\_  
☐ Metropolitan/Magistrate/Municipal Court in \_\_\_\_\_ (*location*);  
☐ New Mexico State Police Investigations Bureau  
☐ Other \_\_\_\_\_

~~[10.]~~ 11. ☐ A copy of this Petition, when filed with the Court, will be mailed by first class United States mail to:

- (1) The District Attorney in the \_\_\_\_\_ Judicial District  
(The District Attorney in the Judicial District where Petitioner's charge originated)

\_\_\_\_\_  
(Address)

- (2) The New Mexico Department of Public Safety  
P.O. Box 1628, Santa Fe, New Mexico 87504-1628

~~[11.]~~ 12. The charges sought to be expunged were originally disposed of or originated in (*select one*)

- ☐ District Court in the Seventh Judicial District  
☐ Metropolitan Court in \_\_\_\_\_ (*location*)  
☐ Magistrate Court in \_\_\_\_\_ (*location*)  
☐ Municipal Court in \_\_\_\_\_ (*location*)

~~[12.]~~ 13. Petitioner has included Petitioner's State of New Mexico, Department of Public Safety Record of Arrest and Prosecution (RAP) sheet, dated no later than ninety (90) days prior to the filing of the petition.

~~[13.]~~ 14. Petitioner has also included the following documentation related to Petitioner's criminal history:

- a. Docket sheet, arrest sheet, or other record detailing the offenses Petitioner is seeking to expunge;  
b. Documentation showing final disposition of the charges Petitioner is seeking to expunge;  
c. Other: \_\_\_\_\_  
(*list any other documentation provided with the petition*).

~~[14.]~~ 15 ☐ Petitioner wishes to attend any hearings in this matter by telephonic or other electronic means as provided for in Rule 1-077.1(J) NMRA.

SIGNATURE SECTION

**I, Petitioner, affirm under penalty of perjury under the laws of the State of New Mexico that the statements herein are true and correct.**

Maria-Alejandra O'Shaughnessy-Whitfield

Printed name of Petitioner

Date

Signature of Petitioner

Mailing Address

Telephone Number

Email

Attorney Name (*if applicable*)

Date

Attorney Signature

Mailing Address

Telephone Number

Email

[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases pending or filed on or after January 28, 2022; provisionally adopted form approved as amended by Supreme Court Order No. S-1-RCR-2024-00099, effective for all cases filed on or after December 31, 2025.]

**4-955. Certificate of service; expungement of records upon release without conviction.**

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO

COUNTY OF Sierra

Seventh JUDICIAL DISTRICT COURT

In re Maria-Alejandra O'Shaughnessy-Whitfield, Petitioner. No.

**CERTIFICATE OF SERVICE**

***(Required for Petitions filed under Section 29-3A-4 NMSA 1978 (Expungement of Records upon Release without Conviction))***

I hereby certify that on the \_\_\_\_\_ (day) of \_\_\_\_\_ (month) \_\_\_\_\_ (year), an endorsed copy of the Petition to Expunge New Mexico Arrest Records and Public Records under Section 29-3A-4 NMSA 1978, filed on \_\_\_\_\_ (date), and this Certificate of Service were mailed via first-class United States mail to:

- ☐ The New Mexico Department of Public Safety  
P.O. Box 1628, Santa Fe, New Mexico 87504-1628
- ☐ The district attorney in the \_\_\_\_\_ Judicial District
- \_\_\_\_\_  
(Address)

☐ Petitioner is pro se **OR** ☐ Petitioner is represented by counsel

I, Petitioner, declare under penalty of perjury under the laws of the State of New Mexico that the statements herein are true and correct.

\_\_\_\_\_  
Petitioner Printed Name

\_\_\_\_\_  
Attorney Printed Signature

\_\_\_\_\_  
Petitioner Address

\_\_\_\_\_  
Attorney Address

\_\_\_\_\_  
Petitioner Telephone Number

\_\_\_\_\_  
Attorney Telephone Number

\_\_\_\_\_  
Petitioner Signature

\_\_\_\_\_  
Attorney Signature

\_\_\_\_\_  
Date of Signature

\_\_\_\_\_  
Date of Signature

## USE NOTES

This certificate of service must be filed with the district court.

[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases filed or pending on or after January 28, 2022.]

**4-959. Notice of completion of briefing; upon release without conviction.**

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO

COUNTY OF Sierra

Seventh JUDICIAL DISTRICT COURT

In re Maria-Alejandra O'Shaughnessy-Whitfield, No.  
Petitioner.

**NOTICE OF COMPLETION OF BRIEFING**

*(for use with petitions filed under Section 29-3A-4 NMSA 1978 (Expungement of Records upon Release without Conviction))*

Petitioner hereby notifies the Court, in accordance with Rule 1-077.1(H) NMRA, that briefing is complete as to Petitioner's Petition to Expungement Arrest Records and Public Records and that the Petition is ready for decision. Petitioner further states:

☐ Notice of the Petition has been provided via first-class United States mail to:

☐ The District Attorney in the \_\_\_\_\_ Judicial District;

☐ The New Mexico Department of Public Safety.

☐ At least sixty-three (63) days have passed since Petitioner mailed the Petition to the parties entitled to notice.

☐ The District ~~[Attorney]~~ Attorney's Response[:]

☐ The district attorney has [Has] filed a Notice of Non-Objection; ~~[or]~~

☐ The district attorney has [Has] filed an objection; or[:]

☐ The petitioner has not received a response from the district attorney.

☐ The New Mexico Department of Public ~~[Safety]~~ Safety's (DPS) Response[:]

☐ DPS has [Has] filed a Notice of Non-Objection; ~~[or]~~

☐ DPS has [Has] filed an objection; or[:]

☐ The petitioner has not received a response from DPS.

☐ Petitioner has included an Affirmation in Support of Expungement (Form 4-960.2 NMRA) with this Notice of Completion of Briefing.

1  
2 Maria-Alejandra O'Shaughnessy-Whitfield

3 Printed name of Petitioner

4  
5 Signature of Petitioner

6  
7 Mailing Address

8  
9 Telephone Number

10  
11 Date

12  
13  
14 Attorney Name (if applicable)

15  
16 Attorney Signature

17  
18 Mailing Address

19  
20 Telephone Number

21  
22 Email

23 **CERTIFICATE OF SERVICE**

24 I hereby certify that on this \_\_\_\_\_ day of \_\_\_\_\_, \_\_\_\_\_ this Notice of  
25 Completion of Briefing was served by United States first class mail on the following:

26  
27 (The District Attorney in the \_\_\_\_\_ Judicial District)

28  
29 (Address)

30  
31 (Telephone)

32  
33  
34 **AND**

35  
36 **New Mexico Department of Public Safety**  
37 P.O. Box 1628, Santa Fe, New Mexico, 87504-1628  
38 (505) \_\_\_\_\_  
39  
40  
41

42 Signature of person sending paper  
43 \_\_\_\_\_



Date of signature

[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases pending or filed on or after January 28, 2022; provisionally adopted form approved as amended by Supreme Court Order No. S-1-RCR-2024-00099, effective for all cases pending or filed on or after December 31, 2025.]

**4-960.2. Affirmation in support of expungement; upon release without conviction.**

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO

COUNTY OF Sierra

Seventh JUDICIAL DISTRICT COURT

In re Maria-Alejandra O'Shaughnessy-Whitfield, Petitioner. No.

**AFFIRMATION IN SUPPORT OF EXPUNGEMENT**  
***(Upon Release without Conviction)***

I, Maria-Alejandra O'Shaughnessy-Whitfield, (*Petitioner name*), am requesting the expungement of records under Section 29-3A-4 NMSA 1978 (Expungement of Records upon Release without Conviction), and hereby affirm the following:

☐ No charge or criminal proceeding is pending against me in any state or federal court in the United States.

**OR**

☐ The following charge(s) or criminal proceeding(s) are pending against me in New Mexico state court:

\_\_\_\_\_  
\_\_\_\_\_

☐ The following charge(s) or criminal proceeding(s) are pending against me in another state court: \_\_\_\_\_

\_\_\_\_\_

☐ The following charge(s) or criminal proceeding(s) are pending against me in federal court:

\_\_\_\_\_  
\_\_\_\_\_

**I, Petitioner, declare under penalty of perjury under the laws of the State of New Mexico that the statements herein are true and correct.**

\_\_\_\_\_  
(*Petitioner Signature*)

Maria-Alejandra O'Shaughnessy-Whitfield  
(*Print Name*)

\_\_\_\_\_  
*Street Address*

\_\_\_\_\_  
*City*

\_\_\_\_\_  
*State*

\_\_\_\_\_  
*Zip Code*

\_\_\_\_\_  
(*Telephone*)

[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases filed or pending on or after January 28, 2022.]

**4-960.1. Notice of hearing.**

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO

COUNTY OF Sierra

Seventh JUDICIAL DISTRICT COURT

In re Maria-Alejandra O'Shaughnessy-Whitfield, Petitioner. No.

**NOTICE OF HEARING**

Petitioner may be entitled to expungement of arrest records or public records under the Criminal Record Expungement Act, Sections 29-3A-1 to -9 NMSA 1978. A hearing in this matter is set before the Honorable \_\_\_\_\_ as follows:

1. Date of Hearing: \_\_\_\_\_
2. Time of Hearing: \_\_\_\_\_
3. Length of Hearing: \_\_\_\_\_
4. Place of Hearing: \_\_\_\_\_  
\_\_\_\_\_
5. Matter(s) to be heard: \_\_\_\_\_

HONORABLE \_\_\_\_\_

By \_\_\_\_\_

TCAA

**PARTIES ENTITLED TO NOTICE:**

Maria-Alejandra O'Shaughnessy-Whitfield

Petitioner Name

\_\_\_\_\_  
Petitioner Address

\_\_\_\_\_  
Petitioner Telephone Number

\_\_\_\_\_  
Petitioner Email Address

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Name

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Agency (if applicable)

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Address

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Telephone Number

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Email Address

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Name

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Agency (if applicable)

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Address

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Telephone Number

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Email Address

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Name

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Agency (if applicable)

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Address

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Telephone Number

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Email Address

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Name

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Agency (if applicable)

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Address

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Telephone Number

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Email Address

USE NOTES

For the purpose of this form, the parties entitled to notice include the petitioner and any party that filed and served objections to the petition for expungement pursuant to Rule 1-077.1(G)(1) NMRA no later than sixty-three (63) days from the date of service. See Rule 1-077.1(G)(1) (providing sixty (60) days for a party entitled to notice to file an objection); Rule 1-077.1(E)(3) NMRA (providing for service by mail for actions filed pursuant to Rule 1-077.1); Rule 1-006(C) (providing for three (3) additional days where service is made by mail).

[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases filed or pending on or after January 28, 2022.]

**4-222. Application for free process and affidavit of indigency.**

[For use with Supreme Court General Rule 23-114 NMRA]

STATE OF NEW MEXICO  
COUNTY OF Sierra  
SIXTH JUDICIAL DISTRICT COURT

Maria-Alejandra O'Shaughnessy-Whitfield, Petitioner,

v.

No. D- \_\_\_\_\_ - \_\_\_\_\_ - \_\_\_\_\_

\_\_\_\_\_, Respondent.

**APPLICATION FOR FREE PROCESS AND AFFIDAVIT OF INDIGENCY**

I request that the court enter an order permitting me to file this case without prepayment of fees and costs and give upon my oath or affirmation the following statement.

My marital status is: Single ☐ Married ☐ Divorced ☐ Separated ☐ Widowed ☐

I request interpretation services: ☐ yes ☐ no (If yes, please describe what you need)

\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

**INFORMATION ABOUT MY FINANCES (check all that apply to you and fill in the blanks):**

**A. PUBLIC ASSISTANCE**

☐ I do not receive public assistance (If you check this blank, go directly to Section B EMPLOYMENT/UNEMPLOYMENT).

☐ I currently receive the following public assistance in \_\_\_\_\_ County (please check all applicable public assistance programs): ☐ Temporary Assistance for Needy Families (TANF)

☐ Food Stamps

☐ Medicaid (for myself)

☐ General Assistance (GA)

☐ Supplemental Security Income (SSI)

☐ Public Housing

☐ Disability Security Income (DSI)

☐ Department of Health Case Management Services (DHMS)

☐ Other (please describe \_\_\_\_\_)

**B. EMPLOYMENT/UNEMPLOYMENT**

☐ I am currently unemployed and have been unemployed for \_\_\_\_ months in the past year. I am unemployed because \_\_\_\_\_.

☐ I receive unemployment benefits in the amount of \$ \_\_\_\_\_ per month.

☐ I have no income because I am unemployed.

☐ I am employed. I am paid \$ \_\_\_\_\_ per hour and work \_\_\_\_ hours per week. My employer's name, address and phone number is:

\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

☐ I am married, and my spouse is unemployed and has been unemployed for \_\_\_\_ months in the past year because \_\_\_\_\_.

☐ My spouse receives unemployment benefits in the amount of \$ \_\_\_\_\_ per month.

☐ I am married, and my spouse is employed. My spouse is paid \$ \_\_\_\_\_ per hour and works \_\_\_\_ hours per week.

My spouse's employer's name, address and phone number is:

\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

**C. OTHER SOURCES OF INCOME** *(Check all that apply)*

☐ I have income from another source not mentioned above.

☐ Child Support \$ \_\_\_\_\_

☐ Alimony \$ \_\_\_\_\_

☐ Investments \$ \_\_\_\_\_

☐ Community property from my spouse \$ \_\_\_\_\_

☐ Other \_\_\_\_\_ \$ \_\_\_\_\_

☐ I do not have any other sources of income.

☐ I am married, and my spouse has income from another source not mentioned above.

☐ Child Support \$ \_\_\_\_\_

☐ Alimony \$ \_\_\_\_\_

☐ Investments \$ \_\_\_\_\_

☐ Other \_\_\_\_\_ \$ \_\_\_\_\_

☐ Other \_\_\_\_\_ \$ \_\_\_\_\_

☐ I am married, and my spouse does not have any other sources of income.

☐ Another adult contributes to household income in the following amount: \$ \_\_\_\_\_



**D. OTHER ASSETS (Please list other assets owned by you or your spouse that can be turned into cash. Do not include money you have in retirement accounts):**

Cash on hand \$ \_\_\_\_\_  
Bank accounts \$ \_\_\_\_\_  
Income tax refund \$ \_\_\_\_\_  
Other assets (describe below):  
\_\_\_\_\_ \$ \_\_\_\_\_  
\_\_\_\_\_ \$ \_\_\_\_\_

**IF YOU DO NOT HAVE ACCESS TO YOUR OWN OR YOUR SPOUSE'S INCOME OR ASSETS, EXPLAIN WHY.**

\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

**E. MONTHLY EXPENSES**

House Payment/Rent \$ \_\_\_\_\_  
Utilities \$ \_\_\_\_\_  
Telephone \$ \_\_\_\_\_  
Groceries (after food stamps) \$ \_\_\_\_\_  
Car Payment(s) \$ \_\_\_\_\_  
Gasoline \$ \_\_\_\_\_  
Insurance \$ \_\_\_\_\_  
Child Care \$ \_\_\_\_\_  
Student and Consumer Loans \$ \_\_\_\_\_  
Court-ordered family support obligations \$ \_\_\_\_\_  
Other court-ordered payments \$ \_\_\_\_\_  
Medical expenses \$ \_\_\_\_\_  
Other \_\_\_\_\_ \$ \_\_\_\_\_

**F. HOUSEHOLD**

I live at \_\_\_\_\_,

and the head of the household is \_\_\_\_\_.

Other than myself, the other members of the household are:

| <u>Name</u> | <u>Age</u> | <u>Employment</u> | <u>I Support</u>         |
|-------------|------------|-------------------|--------------------------|
| _____       | _____      | _____             | <input type="checkbox"/> |
| _____       | _____      | _____             | <input type="checkbox"/> |
| _____       | _____      | _____             | <input type="checkbox"/> |



**IF YOU ARE REPRESENTED BY AN ATTORNEY, YOUR ATTORNEY MUST SIGN THE FOLLOWING CERTIFICATE.**

I, \_\_\_\_\_, hereby certify that I have not received any attorney  
(Name of attorney)  
fee to represent \_\_\_\_\_. If any attorney fee is paid to me, I understand  
(Name of applicant) that I shall pay to the court clerk from such  
attorney fee any court fees and costs that may be waived by the court.

\_\_\_\_\_  
(Attorney signature)

\_\_\_\_\_  
Address

\_\_\_\_\_  
City, State, Zip Code

\_\_\_\_\_  
Telephone/Fax Number

[Adopted by Supreme Court Order No. 07-8300-043, effective February 25, 2008; as amended by Supreme Court Order No. 08-8300-031, effective November 17, 2008; by Supreme Court Order No. 10-8300-044, effective February 9, 2011.]

**4-223. Order for free process.**

[For use with Supreme Court General Rule 23-114 NMRA]

STATE OF NEW MEXICO  
COUNTY OF \_\_\_\_\_  
SIXTH JUDICIAL DISTRICT COURT

\_\_\_\_\_, Petitioner,

v.

No. D-\_\_\_\_\_-\_\_\_\_\_-\_\_\_\_\_

\_\_\_\_\_, Respondent.

**ORDER ON APPLICATION FOR FREE PROCESS**

**THIS MATTER** having come before the court on Petitioner's application for free process and affidavit of indigency, or upon Petitioner's attorney's certificate supporting indigency and free process pursuant to Rule 23-114(B)(2) NMRA, and the court being otherwise advised in the premises, **FINDS** that:

☐ the applicant is entitled to free process in accordance with Rule 23-114(B)(2) NMRA.

☐ the applicant receives public assistance and is, therefore, entitled to free process.

☐ the applicant's annual gross income does not exceed \_\_\_\_\_ of the federal poverty guidelines, and the applicant is, therefore, entitled to free process.

☐ the applicant's annual gross income exceeds \_\_\_\_\_ of the federal poverty guidelines, but the applicant is not reasonably able to pay fees or costs and is, therefore, entitled to free process.

☐ on the basis of the applicant's available funds or annual gross income, the applicant is not entitled to free process.

**THE COURT ORDERS** that:

☐ the filing fee is waived.

☐ the filing fee is waived except for the \$ \_\_\_\_\_ alternative dispute resolution (ADR) fee.

☐ the applicant is granted free service of process by the Sheriff in \_\_\_\_\_ County, New Mexico for 1 2 3 4 5 or \_\_\_\_\_ summons(es), provided that the applicant first attempts service by certified mail pursuant to Rule 1-004 NMRA.

☐ the applicant is granted free service by the Sheriff in \_\_\_\_\_ County, New Mexico, of a temporary restraining order or \_\_\_\_\_.

☐ the applicant is to pay the filing fee on \_\_\_\_\_, 20\_\_\_\_.

☐ interpretation services shall be provided to the applicant.

☐ free process is denied.

☐ Other:

Unless specifically granted above, this order of free process does not include the following costs: jury fees, certification fees, subpoena fees for witnesses, witness fees for hearings or trials, mailings, long distance charges, transcripts for appeals or record proper, duplication fees for audiotapes or compact discs, copy charges, publication fees, or facsimile services. Application for all other costs are to be made to the judge assigned to your case. If the applicant prevails in this law suit and collects money by judgment or settlement, the court may order reimbursement for any waived costs. If the applicant is represented by an attorney who is paid an attorney fee, any fees or costs waived by this order must be deducted from any such attorney fee and paid to the court clerk. **This order is subject to revision, modification, or rescission by the judge assigned to your case.**

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JUDGE

[Adopted by Supreme Court Order No. 07-8300-043, effective February 25, 2008; as amended by Supreme Court Order No. 08-8300-031, effective November 17, 2008; by Supreme Court Order No. 10-8300-044, effective February 9, 2011; as amended by Supreme Court Order No. 17-8300022, effective for all cases pending or filed on or after December 31, 2017.]